

Tentative Rulings for July 27, 2026 Department 2

**To request oral argument, you must notify Judicial Secretary
Crystal Marias at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 2 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

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1.

CASE #	CASE NAME	HEARING NAME
CVRI2205254	SILL vs LENDING BEE, INC	MOTION TO EXPUNGE LIS PENDENS

Tentative Ruling:

Motion granted. No opposition filed.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2505391	SALCEDO vs SANCHEZ	MOTION FOR CHANGE OF VENUE

Tentative Ruling:

Motion granted. No opposition filed.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2505490	GARCIA vs VOLKSWAGEN GROUP OF AMERICA, INC., A NEW JERSEY CORPORATION	MOTION FOR JUDGMENT ON THE PLEADINGS

Tentative Ruling:

Summary of Ruling: The Court denies the motion.

Factual / Procedural Context

On September 18, 2025, Plaintiff filed a Complaint against Defendants Volkswagen Group of America, inc., a New Jersey Corporation ("VWGoA") and Ontario VW. Plaintiff's Complaint alleges (1) Violation of the Song-Beverly Act—Breach of Express Warranty (against VWGoA), Violation of the Song-Beverly Act—Breach of Implied Warranty (against VWGoA), and (3) Negligent Repair (against Ontario VW) in connection with a 2023 Volkswagen Atlas, VIN: 1V2JE2CA5PC201826 ("Subject Vehicle").

Ontario VW has now filed a motion for judgment on the pleadings¹ to Plaintiff's third cause of action on the grounds that Plaintiff's claims are barred by the economic

¹ The Opposition incorrectly refers to this motion as a demurrer.

loss rule and that Plaintiff's Complaint fails to state sufficient facts to constitute a claim against Ontario VW.

In Opposition, Plaintiff contends that a negligent repair claim is sufficiently alleged under CC §§ 1714(a) and 1796.5. Plaintiff also contends that the economic loss rule does not bar a claim for negligence not alleged against the manufacturer or retailer of a product and where no contract was formed between the parties. Alternatively, Plaintiff seeks leave to amend.

In Reply, Defendant Ontario VW contends that Plaintiff's reliance on CC §§ 1714(a) and 1796.5 do not save her negligence claim. Ontario VW also repeats its moving argument that the economic loss rule bars the negligence cause of action.

Analysis

I. Meet and Confer

Defendant Ontario VW has met the statutory obligation to meet and confer pursuant to CCP § 439. (See Declaration of Everett L. Green, ¶4.)

II. Standard

A defendant may move for judgment on the pleadings if the complaint does not state facts sufficient to constitute a cause of action. (CCP § 438(c)(1)(b)(ii).) "A motion for judgment on the pleadings performs the same function as a general demurrer, and hence attacks only defects disclosed on the face of the pleading or by matters that can be judicially noticed." (*Cloud v. Northrop Gruman Corp.* (1998) 67 Cal.App.4th 995, 999.) All facts alleged in are deemed admitted and given a reasonable interpretation. (*Lance Camper Manufacturing Corp. v. Republic Indemnity Co.* (1996) 44 Cal. App. 4th 194, 198.) "No matter how unlikely or improbable, a plaintiff's allegations must be accepted as true for the purpose of ruling on the demurrer. (*Kerivan v. Title Insurance Co.* (1983) 147 Cal. App. 2d 225, 229.) Extrinsic evidence may not be considered. (*Lane v. I.U.O.E. Stationary Engineers* (1989) 212 Cal. App. 3d 164.)

III. Merits

A. Economic Loss Rule

The Economic Loss Rule provides that, generally, plaintiff cannot recover in tort for negligently inflicted harm that is a purely economic loss, i.e., financial harm unaccompanied by physical or property damage. Thus, "tort recovery for breach of a contract duty is generally barred . . . unless two conditions are satisfied. A plaintiff must first demonstrate the defendant's injury-causing conduct violated a duty that is independent of the duties and rights assumed by the parties when they entered the contract. Second, the defendant's conduct must have caused injury to persons or property that was not reasonably contemplated by the parties when the contract was formed. A review of the cases in which the doctrine has evolved provides context."

(*Rattigan, supra*, 17 Cal.5th at pp. 20–21; see *Jimenez v. Superior Court* (2002) 29 Cal.4th 473, 482, quoting *Seely v. White Motor Co.* (1965) 63 Cal.2d 9, 19.)

In moving papers, Defendant Ontario VW cites *Food Safety Net v. Eco Safe Systems USA, Inc.* (2012) 209 Cal.App.4th 1118, 1130 and *Robinson Helicopter Co., Inc. v. Dana Corp.* (2004) 34 Cal.4th 979, 988 to address whether the economic loss rule bars claims for fraud during the performance of a contract. However, in the present matter, Plaintiff has not alleged either fraud or the existence of a contract between themselves and Ontario VW. Civil Code § 1796.5 provides that “[a]ny individual, partnership, corporation, association, or other legal relationship which engages in the business of providing service or repair to new or used consumer goods has a duty to the purchaser to perform those services in a good and workmanlike manner,” meaning that no contract need be formed for Ontario VW to owe Plaintiff a duty not to perform repair services in a negligent manner. And, in *Rattigan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1, the Supreme Court exhaustively surveyed California law regarding when the economic loss rule does and does not prohibit recovery, and it provided no examples of when the economic loss rule bars a pure negligence claim in the absence of a contractual relationship.

In moving papers, Ontario VW cites *Sacramento Regional Transit Dist. v. Grumman Flexible* (1984) 158 Cal.App.3d 289 which is inapposite as it involved a negligence action by a merchant under the Commercial Code 2104(1) against a manufacturer of an allegedly defective product purchased by the merchant. (*Id.*, 291.) In the present matter, Plaintiff is not a merchant under the Commercial Code and Ontario VW is not the manufacturer of the subject vehicle. Accordingly, *Sacramento Regional* does not apply.

Ontario VW also relied on *Seely v. White Motor Co.* (1965) 63 Cal.2d 9, a case which pre-dates the Song-Beverly Act. In the *Seely* case, Plaintiff purchased a truck manufactured and warranted by White which had a number of problems that the selling dealer (Southern Truck Sales) tried unsuccessfully to repair. After the vehicle was in an accident, Plaintiff Seely sued both the manufacturer White and the dealer Southern Truck Sales for breach of warranty issued by manufacturer White. During trial, Plaintiff Seely dismissed dealer Southern Truck Sales. The Supreme Court’s decision does not address the relationship between plaintiff Seely and dealer Southern at all—not whether there was a contract between them, not whether dealer Southern performed repairs negligently and not whether dealer Southern was liable to plaintiff Seely in any way.

Ontario VW also cites *Harlan v. Roadtrek Motorhomes, Inc.* (S.D. Cal. 2009) 2009 WL 928309, a non-precedential federal case applying Federal Rule of Civil Procedure 56 and not the California Code of Civil Procedure in which the plaintiff brought ten causes of action against an RV manufacturer and an RV dealer. One of the plaintiff’s causes of action was a negligence claim against both defendants “with regard to the design, manufacture, inspection, sale and repair of the subject vehicle.” (*Id.* at *18). The court granted the defendants’ motion for summary judgment on the negligence claims on the grounds that the defendants had proven the plaintiff suffered no damages. (*Id.*) However, the fact that these defendants had proven the plaintiff had suffered no damages is irrelevant to what must be alleged to survive a demurrer. By

contrast, in *Garcia v. Ford Motor Company* (E.D. Cal. January 28, 2025) 2025 WL 314072 at *2, *Bailey v. Ford Motor Company* (E.D. Cal November 13, 2024) 2024 WL 4733209 at *7, *Viveros v. Ford Motor Company* (S.D. Cal. July 28, 2021) 2021 WL 5989365 at *6-7 and a host of other cases citing or cited within these opinions federal courts all found a plaintiff's negligent repair claim to be facially valid at the pleading stage when Song Beverly Act claims had also been alleged

DENY

B. Failure to State Facts

To plead a claim for negligence, a plaintiff must allege the following elements: The existence of a duty of care, breach of that duty, and an injury proximately caused by the breach. (*Ladd v. County of San Mateo* (1996) 12 Cal.4th 913, 917.) A claim for negligent repair requires pleading of the elements of negligence, that is, "duty, breach, causation, and damages." (*Lytle v. Ford Motor Company* (E.D. Cal. 2018) 2018 WL 4793800, *2, citing *Burgess v. Superior Court* (1992) 2 Cal.4th 1064, 1072; *Valdez v. J.D. Diffenbaugh Co.* (1975) 51 Cal.App.3d 494, 508.)

Plaintiff has alleged the above elements. Ontario VW contends that Plaintiff must allege a specific dollar amount of damages to survive this motion. However, the cases cited by Ontario VW address what must be alleged to obtain a default judgment. (See *Van Sickel v. Gilbert* (2011) 196 Cal.App.4th 1495, 1520 and *Becker v. S.P.V. Construction Co.* (1980) 27 Cal.3d 489, 494.) This is not the case here, given that Ontario VW has filed a responsive pleading and it not in default. Ain addition, no authority is cited that a specific dollar amount must be alleged to survive a motion to judgment on the pleadings.

Further, Plaintiff explains that damages from Ontario VW's negligent performance of repair service on the subject vehicle include potential exposure to liability for damages to others. In *Robinson Helicopter Co., Inc. v. Dana Corp* (2004) 34 Cal.4th 979, there was no evidence introduced at trial that the nonconforming clutches sold to the plaintiff had actually caused or would likely cause helicopters containing these clutches to be involved in future crashes. Rather, the possibility that such helicopter crashes could have occurred as a result of these nonconforming clutches, and that such crashes could have potentially exposed the plaintiff to monetary damages in lawsuits from injured persons or to fines was deemed sufficient for the plaintiff to obtain tort damages. (Id. at 991). Again, Plaintiff need not plead a specific dollar amount of such damages.

DENY

4.

CASE #	CASE NAME	HEARING NAME
CVRI2507091	ROMERO vs MARCELO	MOTION FOR ENTRY OF INTERLOCUTORY JUDGMENT FOR PARTITION BY SALE, APPOINTMENT OF PARTITION REFEREE, AND RELATED ORDERS

Tentative Ruling:

Motion granted. No opposition filed.

5.

CASE #	CASE NAME	HEARING NAME
RIC1702811	SAN JACINTO COLINAS 337 LLC vs INVESTUSA HOLDING ENTERPRISES LLC	MOTION FOR SUMMARY JUDGMENT

Tentative Ruling:

Summary of Ruling:

Summary Judgment/Adjudication: The Court denies the motion for summary judgment. San Jacinto has failed to meet its initial burden. The Court treats the motion as a motion for summary adjudication as to the first cause of action in the complaint and the third cause of action in the first amended-cross complaint only, due to San Jacinto's failure to comply with California Rules of Court, rule 3.1350(b), (d), and (f) and CCP § 437c(f)(1). The Court denies the motion for summary adjudication as to these causes of action because San Jacinto has failed to meet its initial burden.

PMK Deposition: The Court grants San Jacinto's request to reopen discovery. The Court reopens discovery only for the taking of InvestUSA's PMK and orders that the deposition shall be completed in one calendar day. The deposition shall not exceed 7 hours. The Court will discuss with the parties regarding a convenient date for all parties for the PMK deposition to occur; the Court will order that the deposition go forward on that day.

Factual / Procedural Context:

San Jacinto Colinas 337, LLC ("San Jacinto") owns 96.8 acres of vacant land. It entered into an agreement with InvestUSA Holding Enterprises, LLC ("InvestUSA") for the purchase of said property. San Jacinto contends that InvestUSA breached this agreement by failing to deliver the closing cash balance to escrow, failing to execute and deliver documents to the escrow holder, and failing to provide evidence of sufficient

funds to purchase the property. The complaint asserts a cause of action for breach of contract and declaratory relief.

InvestUSA has filed a cross-complaint. It contends that San Jacinto breached the agreement by unilaterally deciding to withdraw the sale. It alleges that San Jacinto never intended to sell the property to InvestUSA and impaired title to the property. The operative pleading is the first amended cross-complaint ("FACC"). It asserts the following causes of action: (1) breach of contract, (3) common counts, and (3) fraud.

San Jacinto brings both of the instant motions. It seeks summary judgment and/or adjudication of the complaint and FACC. It asserts that InvestUSA breached the purchase agreement. It argues that there are no facts supporting that misrepresentations were made because it provided all documents needed to fulfill the due diligence requirement. It contends that the facts dispute InvestUSA's general denial in its answer.

San Jacinto also brings a motion asking the Court to extend the discovery cutoff date and compel the deposition of InvestUSA's person most knowledgeable ("PMK"). It asserts that InvestUSA's PMK deposition was noticed several times but did not go forward. It was recently noticed, but InvestUSA took the position that the discovery cutoff had passed. San Jacinto asserts that the discovery cutoff had not passed. In the alternative, it argues discovery should be reopened to allow the deposition to proceed.

In opposition to the motion for summary judgment, InvestUSA contends that its potential breaches were not material, and San Jacinto also breached the agreement and could not provide title to the property due to a lien. It argues there is sufficient evidence to support fraud. In response to the motion to reopen discovery and compel the PMK, InvestUSA contends that the parties had agreed that discovery had been completed. When this matter came back to the trial court and a new trial date had been set, San Jacinto made no request to reopen discovery. This request did not occur until 9 months after this matter came back to the trial court. It asserts that there is no good cause to reopen discovery.

The Court has read and considered Plaintiff's reply briefs to both motions.

Analysis:

Summary Judgment/Adjudication: When a plaintiff brings a motion seeking summary judgment, she has the burden to produce admissible evidence to support each element of her causes of action entitling her judgment. (CCP § 437c(p)(1); *S.B.C.C., Inc. v. St. Paul Fire & Marine Ins. Co.* (2010) 186 Cal.App.4th 383, 388.) "If the plaintiff meets this burden, it is up to the defendant 'to show that a triable issue of one or more material facts exists as to that cause of action or a defense thereto.'" (*S.B.C.C., Inc., supra*, 186 Cal.App.4th at 388.)

A defendant meets her burden in a motion for summary judgment by doing one of the following: (1) presenting affirmative evidence negating an essential element of

plaintiff's cause of action; (2) showing a complete defense; or (3) showing that plaintiff does not possess and cannot reasonably obtain needed evidence. CCP §437c(p)(2); *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826. When a defendant has met her burden, it then shifts to plaintiff to show that a triable issue of fact exists.

A motion for summary judgment asks the court to determine that the entire action has no merit and to terminate the action without a trial. (CCP § 437c(a).) A motion for summary adjudication asks the court to adjudicate the merits of a particular cause of action, affirmative defense, issue of duty, or claim for damages. (CCP § 437c(f).)

This motion seeks both summary judgment and summary adjudication in the alternative to the complaint and FACC. A party can seek summary adjudication of one or more causes of action, one or more affirmative defense, one or more claim for damages, or one or more issue of duty. (CCP § 437c(f)(1).) "If a summary adjudication is sought, whether separately or as an alternative to the motion for summary judgment, the specific cause of action, affirmative defense, claims for damages, or issues of duty must be stated specifically in the notice of motion and be repeated verbatim, in the separate statement of undisputed material facts." (California Rules of Court, rule 3.1350(b).) The separate statement must separately identify each cause of action at issue. (*Id.* at (d)(1)(A).) It must also identify "[e]ach supporting material fact claimed to be without dispute with respect to the cause of action, claim for damages, issue of duty, or affirmative defense that is the subject of the motion." (*Id.* at (d)(1)(B).) This motion seeks summary judgment or summary adjudication in the alternative. The separate statement and notice identify three issues that San Jacinto appears to seek summary adjudication of – (1) there are no facts to dispute InvestUSA's breach of contract, (2) the claim against San Jacinto for fraud is undisputedly without support of facts, and (3) InvestUSA's general denial does not provide disputed facts to overcome judgment.

The separate statement is not supposed to combine causes of action. As such, to the extent that the first issue attempts to be based on both San Jacinto's breach of contract claim and InvestUSA's breach of contract claim, this is improper. Since it specifically addresses InvestUSA's breach, the Court treats it as a request for summary adjudication as to San Jacinto's cause of action for breach of contract. The second issue seeks summary adjudication as to InvestUSA's fraud cause of action. The third issue does not pertain to a cause of action, affirmative defense, claim of damages, or existence of a duty. Due to this, this issue cannot be summarily adjudicated. Based on California Rules of Court, rule 3.1350(b), (d), and (f) and CCP § 437c(f)(1), this motion shall be treated as a motion for summary judgment and a motion for summary adjudication only as to the first cause of action in San Jacinto's complaint and the third cause of action in the FACC.

First Cause of Action in San Jacinto's Complaint for Breach of Contract: "To prevail on a cause of action for breach of contract, the plaintiff must prove (1) the contract, (2) the plaintiff's performance of the contract or excuse for nonperformance, (3) the defendant's breach, and (4) the resulting damage to the plaintiff." (*Richman v. Hartley* (2014) 224 Cal.App.4th 1182, 1186.)

San Jacinto has failed to meet its initial burden as to this cause of action. San Jacinto seeks monetary damages in this cause of action. (Complaint, ¶ 29.) It has failed to provide any evidence to support the element of damages. Only two declarations have been submitted, neither one of them address the issue of damages. As such, it has failed to establish this element.

Additionally, San Jacinto has failed to provide evidence to support the second element required for breach of contract. Neither declaration provided establishes that San Jacinto has met all its conditions under the agreement or was excused from performance. Counsel's declaration only authenticates documents. The bulk of Gregory Lasing's declaration also authenticates documents. He only discusses what San Jacinto "stood ready" to do, but he does state what conditions San Jacinto performed under the agreement or whether it was excused from performing any obligation. Neither declaration includes an assertion that all conditions were met by San Jacinto or excused. Based on the agreement, San Jacinto had many obligations under the agreement, like making available and continuing to make available documents to InvestUSA, paying delinquent taxes, depositing documents with escrow, paying property taxes and assessments, complying with its representations and warranties (which were ongoing until the closing date). (Agreement of Purchase and Sale and Escrow Instructions, Exhibit H to Gregory Lansing's Declaration.) It is unclear whether these conditions were met or excused. The memorandum of points and authorities also does not discuss these requirements or excuse from compliance. Based on this, San Jacinto has failed to meet its initial burden as to the first cause of action in the complaint. Due to this, the motion for summary judgment is denied. Also, the request for summary adjudication as to this cause of action is denied.

Since the request for summary judgment fails, the Court addresses the remaining request for summary adjudication as to the fraud cause of action in the cross-complaint.

Third Cause of Action in Cross-Complaint for Fraud: The FACC is a form complaint. The third cause of action asserts claims for intentional or negligent misrepresentation, concealment, and promise without intent to perform (or promissory fraud). The claims in this cause of action are based on misrepresentations regarding the availability of a survey and disclosure documents and entry of the agreement without the intent to go through with the sale.

The necessary elements of a fraud cause of action based on intentional misrepresentation are: (1) misrepresentation, (2) knowledge that the misrepresentation is false by defendant, (3) intent to defraud, (4) justifiable reliance by the plaintiff, and (5) resulting damages. (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 638.) Fraud based on concealment requires: "(1) the defendant must have concealed or suppressed a material fact, (2) the defendant must have been under a duty to disclose the fact to the plaintiff, (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage." (*Marketing West, Inc. v. Sanyo Fisher (USA) Corp.* (1992) 6 Cal.App.4th 603, 612-613.) "Promissory fraud is a subspecies of fraud, and an action

may lie where a defendant fraudulently induces the plaintiff to enter into a contract, by making promises he does not intend to keep.” (*Missakian v. Amusement Industry, Inc.* (2021) 69 Cal.App.5th 630, 654.) It requires a promise made regarding a material fact without the intent to perform it; the intent existed at the time the promise was made; reasonable reliance on the promise; nonperformance by the party making the promise; and damage. (*Ibid.*)

San Jacinto contends that this cause of action fails because there is no evidence to support that misrepresentations were made. San Jacinto does not try to establish this by providing direct evidence that the representations were not made. Instead, it appears to rely on lack of evidence by InvestUSA. One way a cross-defendant can meet their initial burden in a motion for summary judgment/adjudication is to show that the cross-complainant does not possess and cannot reasonably obtain needed evidence. (CCP § 437c(p)(2); *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 847.) A cross-defendant moving for summary adjudication cannot simply assert that the cross-complainant does not possess evidence, it must present evidence to support this assertion, and that cross-complainant cannot reasonably obtain evidence. (*Aguilar, supra*, 25 Cal.4th at 854.) It does this by presenting evidence that extensive discovery has been done and the cross-complainant has discovered nothing. (*Id.* at 855.) San Jacinto does not present evidence to meet this requirement. While San Jacinto has provided InvestUSA’s discovery responses to special interrogatories in August of 2017, it provides no evidence regarding how much discovery before these responses were provided was done. As such, there is no evidence that extensive discovery had been done before these responses were provided. Due to this, there is no evidence that InvestUSA does not have evidence and cannot reasonably obtain evidence to support this cause of action.

San Jacinto also contends that it provided the documents necessary to fulfil its due diligence requirements. However, San Jacinto fails to provide evidence to support this assertion. San Jacinto only provides evidence that it produced documents to InvestUSA. (Declaration of Gregory Lansing, ¶ 4.) However, it does not provide evidence that these documents met its due diligence requirements. Under the agreement, San Jacinto was required to produce all documents and information in its possession, custody and/or control that are materially important to its ownership, development and/or management of the property, which includes (but is not limited to) building plans, engineering plans, environmental studies, the most recent real property tax bill, written rental agreements, and any survey of the property. (Exhibit H to Gregory Lansing’s Declaration, ¶ 3.3.3.) San Jacinto provides no evidence that all the documents in its possession custody, or control were provided.

San Jacinto’s last argument is that no damages can be obtained in a breach of fraud cause of action that is based on a contract, unless conduct violates an independent duty. This is known as the economic loss rule. However, the economic loss rule is not applicable to claims for promissory fraud and fraudulent inducement, which is asserted in the third cause of action. (*Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1, 41-44.) As such, this argument fails. Therefore, the motion for summary judgment and summary adjudication as to this cause of action is denied.

Reopen Discovery Cutoff/PMK Deposition: “[A]ny person shall be entitled as a matter of right to complete discovery proceedings on or before the 30th day, . . . before the date initially set for trial of the action.” (CCP § 2024.020(a).) “Except as provided in Section 2024.050, a continuance or postponement of the trial date does not operate to reopen discovery proceedings.” (Id. at (b).) Under CCP § 2024.050, “the court may grant leave to complete discovery proceedings, or to have a motion concerning discovery heard, closer to the initial trial date, or to reopen discovery after a new trial date has been set.” When determining whether to grant a motion to reopen the discovery cutoff, the court is to consider the following factors: (1) reason and necessity for discovery; (2) diligence or lack of diligence in seeking the discovery and reason it was not completed earlier; (3) likelihood that allowing the discovery will prevent the case from going to trial on the date set; and (4) length of time that has elapsed between the date previously set and currently set for trial. (CCP § 2024.050(b).)

The timeline in this matter is unusual. Trial was originally set for 12/7/18. It was vacated due to a stipulation filed on 11/7/18. The stipulation asked to stay the action to allow the parties to resolve this matter in binding arbitration. The stipulation states that the parties “agree they have had adequate time to conduct discovery since the inception of the ACTION, therefore there will be no additional discovery available to the PARTIES, whether written or through depositions.” This matter returned to active status on 10/3/25. Trial was set for 8/28/26. In the 3/23/26 minute orders for the trial setting conference, it indicate that there was a representation made at the trial setting conference that discovery was done. There is no indication in the minutes that there was any request to reopen discovery. Since there was a prior trial date in this matter, discovery was closed at the time the parties stipulated to go to arbitration.

San Jacinto asserts that the deposition of InvestUSA’s PMK is necessary and will lead to information that is directly relevant and necessary for San Jacinto’s preparation for trial. It argues that it was diligent in seeking said discovery. It asserts the bulk of the time this matter has been pending, it has been with arbitration, where discovery is typically limited. It contends that it wanted to resolve this matter outside of court, but InvestUSA’s counsel has not been responsive regarding this issue. It argues that the deposition could be completed before trial and that target discovery will promote just results. It also asserts any prejudice to InvestUSA would be limited.

InvestUSA contends that this motion should be denied because the parties stipulated to discovery being complete. While this is correct, this was done in connection with arbitration, which typically has limited discovery. As such, it does not appear fair to impose any stipulation regarding discovery and arbitration on San Jacinto.

It does appear that San Jacinto did not act diligently in bringing this issue to the Court. The matter was placed back on active status in October 2025. It does not appear that this issue was raised in the March 2026 trial setting conference. However, by the Court limiting the reopening of discovery to only the PMK deposition and only allows San Jacinto to take the deposition on one day for no more than the 7 hours (see CCP § 2025.290(a)), this deposition may occur and the matter will still move forward with trial on 8/28/26. The deposition of InvestUSA is directly relevant to this matter. As such, the Court grants the request but limits the discovery order as discussed above.

6.

CASE #	CASE NAME	HEARING NAME
RIC1702811	SAN JACINTO COLINAS 337 LLC vs INVESTUSA HOLDING ENTERPRISES LLC	MOTION TO COMPEL DEPOSITION OF THE PERSON MOST KNOWLEDGEABLE AT DEFENDANT INVESTUSA HOLDING ENTERPRISES, LLC AND RAPHAEL AHARANOFF

Tentative Ruling:

See #5 Above.